

UPSC INDIAN POLITY

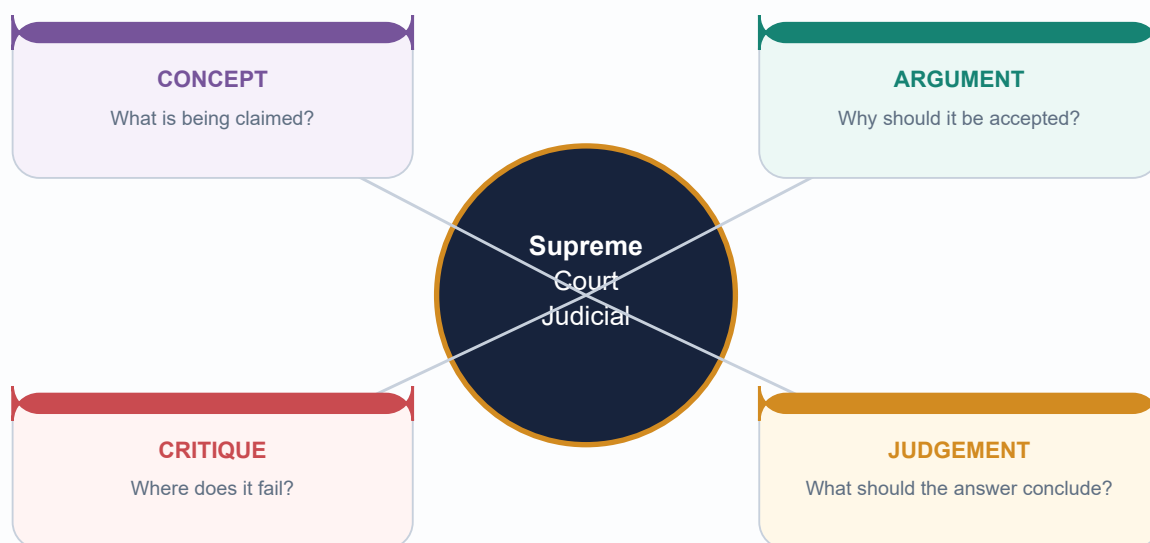
Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity • GS Paper II • Prelims + Mains

Layer 1: Basic foundation • Layer 2: Advanced constitutional and exam depth

Sources: Supreme-Court.md + 18_Supreme-Court.md

Learning cards: 22



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation • Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Basic · **GS Paper:** GS-II · **Grounded in:** Laxmikant Ch. 26–29.

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• greater than □ book · □□ inference · □ current. *Depth version: advanced/18_Supreme-Court.md.*

MUST-KNOW FACTS

1. greater than book · □□ inference · □ current. *Depth version: advanced/18_Supreme-Court.md.*

MAINS ANGLE

STUDY LINK

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation • Snapshot

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Value
Articles	124–147 (Part V)
Inaugurated	□ 28 Jan 1950 (succeeded Federal Court, replaced Privy Council)
Strength	□ 34 (1 CJI + 33; raised from 31 in 2019)
Judiciary type	□ Integrated / single (SC → HCs → subordinate courts)
Judge retires at	□ 65 (HC judge = 62)
Removal	Special majority of Parliament; *proved misbehaviour / incapacity*

MAINS ANGLE

STUDY LINK

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · Core idea

GS-II Indian
Polity

INTRO & ORIGIN

□ The Supreme Court is the **guardian of the Constitution** and **guarantor of Fundamental Rights**. India has **one integrated judiciary** enforcing both Central and state laws (unlike the US double system).

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• greater than □ **Qualification: Citizen + 5 yrs HC judge / 10 yrs HC advocate / distinguished jurist — no minimum age.**

MEMORY HOOK

greater than Qualification: Citizen + 5 yrs HC judge / 10 yrs HC advocate / distinguished jurist — no minimum age.

MUST-KNOW FACTS

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MAINS ANGLE

STUDY LINK

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → Core idea

HIGH

Foundation · The Collegium (must remember) □

GS-II Indian
Polity

INTRO & ORIGIN

□ Judges appointed by the **President** but effectively by the **collegium = CJI + 4 seniormost judges** (Second & Third Judges cases). The **NJAC (99th Amdt 2014)** was **struck down in 2015** (Fourth Judges Case) → collegium restored.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

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MAINS ANGLE

STUDY LINK

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → The Collegium (must remember) □

HIGH

Foundation • Five jurisdictions

GS-II Indian
Polity

INTRO & ORIGIN

□ **Original** (federal disputes, exclusive) · **Writ** (only for FRs, Art 32) · **Appellate** (incl. **SLP, Art 136**) · **Advisory** (Art 143, *not binding*) · **Court of Record** (Art 129, contempt power).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. **Original** (federal disputes, exclusive) · **Writ** (only for FRs, Art 32) · **Appellate** (incl. **SLP, Art 136**) · **Advisory** (Art 143, *not binding*) · **Court of Record** (Art 129, contempt power).

MAINS ANGLE

STUDY LINK

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → Five jurisdictions

HIGH

Foundation • Must-Know Facts

GS-II Indian
Polity

INTRO & ORIGIN

□ **Judicial Review** — power to strike down laws violating the Constitution; part of the **basic structure**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

Dimension 1

- Judicial Review — power to strike down laws violating the Constitution; part of the basic structure.

Dimension 2

- HC's writ power (Art 226) is wider than SC's (Art 32).

Dimension 3

- No SC judge ever removed (Ramaswami 1993 survived).

Dimension 4

- PIL introduced early 1980s by Justices Krishna Iyer & Bhagwati (relaxed *locus standi*).

STATIC THEORY

- HC's writ power (Art 226) is **wider** than SC's (Art 32).
- **No SC judge ever removed** (Ramaswami 1993 survived).
- **PIL** introduced early 1980s by **Justices Krishna Iyer & Bhagwati** (relaxed *locus standi*).
- SC law is **binding on all courts** (Art 141); it can review its own judgments.

MUST-KNOW FACTS

1. **Judicial Review** — power to strike down laws violating the Constitution; part of the **basic structure**.
2. HC's writ power (Art 226) is **wider** than SC's (Art 32).
3. **No SC judge ever removed** (Ramaswami 1993 survived).
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MAINS ANGLE**STUDY LINK**

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → Must-Know Facts

HIGH**Foundation · ☐ Current link**

GS-II Indian Polity

NEWS TRIGGER

☐ ☐ ☐ The **Collegium vs Executive** tug-of-war over judicial appointments and delays, plus **huge case pendency**, keeps judicial reform in the news. ☐ ☐ Full jurisdiction, cases, traps & Mains angles:
advanced/18_Supreme-Court.md

INTRO & ORIGIN

Exam-ready treatment of ☐ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → ☐ Current link

HIGH**Advanced · Core Foundation**

GS-II Indian Polity

INTRO & ORIGIN

greater than **Subject: Polity** · **Tier: Advanced** (exam depth) · **GS Paper: GS-II**

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

Dimension 1 greater than Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	Dimension 2 greater than Grounded in: Indian Polity by M. Laxmikant, Ch. 26–29 (direct check of the local Sixth Revised Edition PDF).
Dimension 3 greater than □ = from source book · □□ = inference / case law · □ = current affairs.	Dimension 4 greater than Companion: basic/Supreme-Court.md.

STATIC THEORY

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- greater than □ = from source book · □□ = inference / case law · □ = current affairs.
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MUST-KNOW FACTS

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MAINS ANGLE

STUDY LINK

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
 ADVANCED / COMPLETE → Core Foundation

HIGH

Advanced · PART A — ORGANISATION

GS-II Indian Polity

INTRO & ORIGIN

□ India has an **integrated (single) judiciary** — SC at top, HCs below, subordinate courts under them — adopted from **Gol Act 1935**; enforces **both** Central & state laws (unlike the USA's double system). SC **inaugurated 28 Jan 1950**, succeeded the **Federal Court (1937)** and replaced the **British Privy Council** as the highest court of appeal. **Articles 124–147 (Part V)**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. India has an **integrated (single) judiciary** — SC at top, HCs below, subordinate courts under them — adopted from **Gol Act 1935**; enforces **both** Central & state laws (unlike the USA's double system). SC **inaugurated 28 Jan 1950**, succeeded the **Federal Court (1937)** and replaced the **British Privy Council** as the highest court of appeal. **Articles 124–147 (Part V)**.

MAINS ANGLE

STUDY LINK

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
 ADVANCED / COMPLETE → PART A — ORGANISATION

HIGH

Advanced · Composition GS-II Indian
Polity

INTRO & ORIGIN

□ Present strength = **34 (1 CJI + 33 judges)** — raised from 31 by the **Supreme Court (Number of Judges) Amendment Act, 2019**. Originally 8 (1949).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

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MAINS ANGLE

STUDY LINK

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → Composition 

HIGH

Advanced · PART B — APPOINTMENT & THE COLLEGIUM GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Case	Year	Held
□ First Judges	1981	"consultation" ≠ concurrence; executive primacy
□ Second Judges	1993	consultation = concurrence ; collegium born; CJI's advice binding
□ Third Judges	1998	collegium = CJI + 4 seniormost SC judges; plurality of judges
□ Fourth Judges (NJAC)	2015	struck down 99th Amdt + NJAC Act 2014 as unconstitutional (violates judicial independence) → collegium restored

MAINS ANGLE

STUDY LINK

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → PART B —
APPOINTMENT & THE COLLEGIUM 

HIGH

Advanced • PART B — APPOINTMENT & THE COLLEGIUM □

GS-II Indian
Polity

INTRO & ORIGIN

□ Judges appointed by the **President**. CJI appointed after "consultation"; other judges after consultation **with the CJI** (obligatory).

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• □□ **CJI appointment convention**: seniormost SC judge (broken in 1973 A.N. Ray & 1977 M.H. Beg by supersession; **Second Judges Case (1993)** restored seniority rule).

MUST-KNOW FACTS

1. Judges appointed by the **President**. CJI appointed after "consultation"; other judges after consultation **with the CJI** (obligatory).

MAINS ANGLE

STUDY LINK

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → PART B —
APPOINTMENT & THE COLLEGIUM □

HIGH

Advanced • Qualifications, tenure, removal □

GS-II Indian
Polity

INTRO & ORIGIN

□ Citizen of India + **5 yrs HC judge / 10 yrs HC advocate / "distinguished jurist"**. **No minimum age**. Holds office till **65 years**; resigns to President. **Removal (impeachment)**: by President after **special majority** of both Houses on grounds of **proved misbehaviour or incapacity**, per the **Judges Enquiry Act 1968** (motion by 100 LS / 50 RS members → 3-member inquiry committee). □ **No SC judge has ever been removed** (V. Ramaswami 1991-93 survived — Congress abstained). □ Salary charged on **Consolidated Fund**; can't be varied to disadvantage (except financial emergency).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Citizen of India + **5 yrs HC judge / 10 yrs HC advocate / "distinguished jurist"**. **No minimum age**. Holds office till **65 years**; resigns to President. **Removal (impeachment)**: by President after **special majority** of both Houses on grounds of **proved misbehaviour or incapacity**, per the **Judges Enquiry Act 1968** (motion by 100 LS / 50 RS members → 3-member inquiry committee). **No SC judge has ever been removed** (V. Ramaswami 1991-93 survived — Congress abstained). Salary charged on **Consolidated Fund**; can't be varied to disadvantage (except financial emergency).

MAINS ANGLE

STUDY LINK

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → Qualifications,
tenure, removal □

HIGH

Advanced · PART C — JURISDICTION □

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Type	Scope
□ Original (exclusive)	Federal disputes: Centre↔state(s), state↔state. Excludes political questions, pre-Constitution treaties, inter-state water disputes , Finance Commission matters
□ Writ	Issues 5 writs (habeas corpus, mandamus, prohibition, certiorari, quo warranto) — only for Fundamental Rights (Art 32); concurrent with HCs; HC writ power (Art 226) is wider
□ Appellate	Constitutional (HC certifies substantial question of law) · Civil · Criminal · Special Leave Petition (Art 136) — discretionary, plenary, against any court/tribunal except military
□ Advisory (Art 143)	President may seek opinion; SC may refuse (public-importance) but must advise on pre-Constitution treaty disputes; opinion not binding
□ Court of Record (Art 129)	Records as precedents; contempt of court power
□ Judicial Review	Examine constitutionality of laws/executive orders; strike down ultra vires ones

MAINS ANGLE

STUDY LINK

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → PART C —
JURISDICTION □

HIGH

Advanced · PART C — JURISDICTION □

GS-II Indian
Polity

INTRO & ORIGIN

□ **Other powers:** decides President/VP election disputes (original, exclusive, final); reviews its own judgments (**self-correcting** — Kesavananda 1973 overruled Golak Nath 1967); law binding on all courts (**Art 141**); transfers cases between HCs.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

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MAINS ANGLE**STUDY LINK**

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → PART C —
JURISDICTION □

HIGH**Advanced · PART D — JUDICIAL REVIEW** □GS-II Indian
Polity**INTRO & ORIGIN**

□ Power to examine constitutionality of legislative & executive action; not explicitly named but flows from **Art 13, 32, 131-136, 143, 226, 246, 251, 372**. Basis = **basic structure** (Kesavananda 1973). □□ Three grounds: violation of FRs, exceeding constitutional scope, procedural non-compliance. **Ninth Schedule** laws (post-**24 April 1973**) are also reviewable (I.R. Coelho, 2007).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

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MAINS ANGLE**STUDY LINK**

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → PART D —
JUDICIAL REVIEW □

HIGH**Advanced · PART E — JUDICIAL ACTIVISM vs RESTRAINT** □GS-II Indian
Polity**INTRO & ORIGIN**

□ **Judicial activism** = judges going beyond review to *make policy/law* (term originated in USA mid-20th c.; in India via **expanded locus standi & PIL**). □□ Justifications (Wadehra/Kashyap): legislative-executive failure, hung legislatures, protection of citizens' rights, legislative vacuum. **Judicial restraint** = deference to the elected branches; separation of powers. □□ Criticism: judicial over-reach, "government by judiciary."

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

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MAINS ANGLE**STUDY LINK**

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → PART E —
JUDICIAL ACTIVISM vs RESTRAINT □

HIGH**Advanced · Public Interest Litigation (PIL) □**GS-II Indian
Polity**INTRO & ORIGIN**

□ Originated in **USA (1960s)**; introduced in India **early 1980s** by **Justice V.R. Krishna Iyer & Justice P.N. Bhagwati**. Key = **relaxation of locus standi** → *any* public-spirited person can move the court for the disadvantaged. Also called SAL/SIL/CAL. Aim: rule of law + access to justice + realising FRs. □□ Downside: frivolous/"publicity-interest" litigation, judicial overload.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Originated in **USA (1960s)**; introduced in India **early 1980s** by **Justice V.R. Krishna Iyer & Justice P.N. Bhagwati**. Key = **relaxation of locus standi** → *any* public-spirited person can move the court for the disadvantaged. Also called SAL/SIL/CAL. Aim: rule of law + access to justice + realising FRs. □□ Downside: frivolous/"publicity-interest" litigation, judicial overload.

MAINS ANGLE**STUDY LINK**

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → Public Interest Litigation (PIL) □

HIGH**Advanced · UPSC Traps**GS-II Indian
Polity**INTRO & ORIGIN**

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: SC writ jurisdiction is wider than HC's

CORRECT: HC (Art 226) is **wider** (FRs *and* other purposes).

WRONG: SC's advisory opinion (Art 143) is binding

CORRECT: **not binding**; on pre-Constitution treaties SC **must** advise but opinion still non-binding.

WRONG: Original jurisdiction covers inter-state water disputes

CORRECT: **excluded** (Art 262 → tribunals).

WRONG: Collegium is in the Constitution

CORRECT: judicial creation (Second/Third Judges cases); NJAC (99th Amdt) was struck down in 2015.

WRONG: A "distinguished jurist" can't be an SC judge

CORRECT: **can** be (though never yet appointed).

WRONG: An SC judge has been impeached

CORRECT: **none ever removed** (Ramaswami survived).

WRONG: SLP (Art 136) lies against military courts

CORRECT: **excluded**.

MAINS ANGLE**STUDY LINK**

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → UPSC Traps

HIGH**Advanced • CA hooks**GS-II Indian
Polity**NEWS TRIGGER**

□ □ □ **Collegium vs Executive** tussle — recurring friction over judicial appointments, delays in notifying collegium recommendations, and periodic calls to revive an NJAC-type body. □ □ □ **Case pendency** (~5 crore across courts) & vacancies — judicial reforms, e-Courts, fast-track courts.

INTRO & ORIGIN

□ □ □ **Basic structure at 50** (Kesavananda Bharati, 1973) — reaffirmed as the bedrock check on Parliament.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• □ □ □ SC rulings on **Governors' delay in bill assent** (Art 200) & timelines — federalism + judicial review.

MAINS ANGLE**STUDY LINK**

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → □ CA hooks

HIGH

Advanced • Mains angles

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

The collegium system: transparency deficit vs judicial independence — is a reformed appointment body needed? Judicial activism vs judicial overreach — where should the line be drawn (separation of powers)? PIL: democratising justice or an instrument of judicial excess? Discuss. Judicial review & the basic structure doctrine as guardians of constitutionalism.

STUDY LINK

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → Mains angles

HIGH

Advanced • Verified PYQ applications

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of Verified PYQ applications.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

□ **2024 GS-II Q14 (15 marks, 250 words):** “Explain the reasons for the growth of public interest litigation in India. As a result of it, has the Indian Supreme Court emerged as the world’s most powerful judiciary?” Route: relaxed locus standi, epistolary jurisdiction and executive/legislative gaps -greater than rights/access gains -greater than continuing-mandamus and policy-overreach concerns -greater than power remains constitutionally bounded. □ **2025 GS-II Q11 (15 marks, 250 words):** constitutional morality as a check on high functionaries, applied to balancing judicial independence and accountability. Use basic-structure independence plus transparent appointments, reasoned recusals, asset/ethics disclosure and a fair removal/complaints mechanism. □ **2025 GS-II Q13 (15 marks, 250 words):** “Discuss the evolution of collegium system in India. Critically examine the advantages and disadvantages of the system of appointment of the Judges of the Supreme Court of India and that of the USA.” Route: First-Second-Third Judges cases/NJAC -greater than independence vs opacity -greater than compare US presidential nomination and Senate confirmation -greater than seek accountable independence, not executive primacy.

STUDY LINK

Supreme Court + Judicial Review, Judicial Activism & PIL (Articles 124–147) —
ADVANCED / COMPLETE → Verified PYQ applications

End of Register Notes — UPSC Agent / Copilot CLI